

CFES

*CANADIAN FEDERATION
OF ENGINEERING STUDENTS*



FCEG

*LA FÉDÉRATION CANADIENNE
ÉTUDIANTE EN GÉNIE*

Canadian Federation of Engineering Students

Constitution

English Edition

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Contents

1) Article 1 - General	6
1.1) Name of the Corporation	6
1.2) Head Office	6
1.3) The Seal	6
1.4) Fiscal Year	6
1.5) Abbreviation	7
1.6) Logo	7
2) Article 2 - Dispositions	7
2.1) Guiding Principles	7
2.2) Mission	7
2.3) Regions	8
2.4) Official Languages	8
2.5) Invalidation	9
2.6) Titles	9
2.7) Interpretation	9
2.8) Bylaws	9
2.9) Policy Manual	9
2.10) Document of Stances	9
3) Article 3 - Membership	10
3.1) Member Societies	10
3.1.1) Structure	10
3.1.2) Regular Member	10
3.1.3) Cooperative Regular Member	10
3.2) Application for Membership	10
3.3) Observer Status	10
4) Article 4 - General Meetings	11
4.1) Purpose	11
4.2) Annual Meetings	11
5) Article 5 - National Executive	11
5.1) Composition	11
5.2) Election	11
5.3) Term of Office	11
6) Article 6 - Regional Ambassadors	12
6.1) Composition	12
6.2) Term	12
7) Article 7 - National Councillors	12
7.1) Purpose	12
7.2) Election	12

7.3) Term	12
8) Article 8 - Directors	12
8.1) Purpose	12
8.2) Composition	13
9) Article 9 - Board	13
9.1) Purpose	13
9.2) Composition	13
10)Article 10 - Team	13
10.1) Purpose	13
10.2) Composition	14
11)Article 11 - Elections	14
11.1) General Policy	14
11.2) Eligibility	14
12)Article 12 - Activities and Services	14
12.1) Overview	14
12.1.1) Canadian Engineering Competition	14
12.1.2) Canadian Engineering Leadership Conference	15
12.1.3) Conference on Diversity in Engineering	15
12.1.4) Summit on Development of Engineering Societies	15
12.1.5) Conference on Sustainability in Engineering	15
12.2) Organization of Activities and Services	15
12.2.1) Logos	15
12.2.2) Activity Agreements	15
12.2.3) Organizing Members	16
12.2.4) Activity Managers	16
13)Article 13 - Financial and Legal Dispositions	16
13.1) External Audit	16
13.1.1) The Federation	16
13.1.2) Activities	16
13.2) Audit by Membership	16
13.3) Reimbursements	17
13.3.1) Ordinary	17
13.3.2) Extraordinary	17
13.4) Trust Company	17
13.5) Donations	17
13.6) Power of Attorney	17
13.7) Contracts	18
13.7.1) Signing Requirements	18
13.7.2) Special Signing Officer	18

14)Article 14 - Dissolution of the Federation	18
15)Article 15 - Amendments	18
15.1) Substantive Amendments	18
15.2) Grammatical Amendments	19
15.3) Temporary Amendments	19
16)Article 16 - Annulment	19

Terms & Definitions

Term	Article	Definition
Engineering Society		An Engineering Society is a society representing undergraduate engineering students at a Canadian higher education institution having an engineering program accredited, or in the process of accreditation, by the Canadian Engineering Accreditation Board, that represents the students' concerns to their faculty and higher education institution administration.
Resolution		Motion presented as "Proposal" and approved by a majority vote.
Federation	1.1	The short name for the Canadian Federation of Engineering Students
CFES, FCEG	1.5	Abbreviations for the Canadian Federation of Engineering Students
Logo	1.6	The official logo of the Federation
Fiscal Year	1.4	The fiscal year of the Federation, April 1 - April 30
Official Language	3.4	The official languages of Federation, English and French
Member Societies, Members, the Membership	4.1	The organizations that compose of the membership of the Federation
Observer	4.3	An Engineering Society with observer status
General Meetings	5	The meetings of the Members, colloquially referred to as "General Assemblies"
Annual General Meeting	5.1	The General Meeting held annual at the Canadian Engineering Leadership Conference
National Executive	6	The President and the Vice-Presidents
Regional Ambassadors	7	The regional representative from each respective region

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National Councillors	8	The individuals responsible for advising the Board and the Membership
Directors	9	The directors formally recognized by the Government of Canada and financial institutions
Board	10	The board that manages the property and business of the Federation
Team	11	The individuals that participate in the workings of the Federation
Organizing Member	13.2.3	The Member Society responsible for an activity or service of the Federation
Activity Manager(s)	13.2.4	The individuals appointed by the Organizing Member to organize an activity or service of the Federation

1 Article 1 - General

1.1 Name of the Corporation

1. The name of the Corporation shall be “The Canadian Federation of Engineering Students”, hereafter called “the Federation”.
2. The official French name of the Federation shall be “La Fédération canadienne étudiante en génie”.

1.2 Head Office

1. The Head Office of the Federation shall be located at the office of Engineers Canada, 55 Metcalfe Street – Suite 300, Ottawa, Ontario, K1P 6L5.

1.3 The Seal

1. The Seal, an impression whereof is stamped below, shall be the Seal of the Federation.

1.4 Fiscal Year

1. The Fiscal Year of the Federation shall conclude on April 30 each year.

1.5 Abbreviation

1. “CFES” and “FCEG” are employed to designate the Canadian Federation of Engineering Students.

1.6 Logo

1. The Logo that appears below is employed to designate the Canadian Federation of Engineering Students.

2 Article 2 - Dispositions

2.1 Guiding Principles

1. The Federation supports growth and communication within its members to ensure their moral, intellectual, cultural, academic, social and economic well-being.
2. The Federation represents and promotes Canadian undergraduate engineering students on a national and international level.
3. The Federation will not align itself with any political party.

2.2 Mission

1. The goal of the Federation is to solicit, represent, organize and exchange views, information and activities pertinent to the goals of the Members at a national level as to ensure their moral, intellectual, cultural, academic, social and economic well-being, and to improve the quality and scope of Canadian engineering education.
2. The means by which this will be done are:
 - (a) To organize and host conferences, meetings, assemblies, exhibitions and competitions related to this end,
 - (b) To affiliate itself with any organization pursuing the same goals as those of the said corporation,
 - (c) To acquire via purchase, renting or otherwise, to possess and operate the assets, movables and real estate necessary for the accomplishment of the above mentioned goals,
 - (d) To provide to its Members services of all kinds related to the above mentioned goals,
 - (e) To create, support, participate in movements, opinion campaigns or other organizations relating to these goals whenever possible,
 - (f) To encourage Members to promote the creation and exchange of pertinent information to all Members and other interested parties,

- (g) To promote the interaction of Canadian engineering students with specific interest groups (societies, associations, government and other agencies) on national and international issues of social, economic, political, legal and human concern relevant to engineering,
- (h) To present information of relevance to appropriate government and other agencies,
- (i) To cooperate with all engineering associations recognized by the corporation in matters of common interest,
- (j) To promote the public image of engineering students in Canada,
- (k) To facilitate and develop activities and services, including but not limited to the:
 - i. Canadian Engineering Leadership Conference
 - ii. Canadian Engineering Competition
 - iii. Conference on Diversity in Engineering
 - iv. Conference on Sustainability in Engineering
 - v. Summit on Development of Engineering Societies

2.3 Regions

1. The Federation comprises of 4 regions. They are:
 - (a) Atlantic – Provinces of Prince Edward Island, of New Brunswick, of Nova Scotia, and of Newfoundland and Labrador;
 - (b) Quebec – Province of Quebec;
 - (c) Ontario – Province of Ontario; and
 - (d) West – Provinces of British Columbia, of Alberta, of Saskatchewan, of Manitoba, and The Territory of Yukon, Territory of Nunavut and North-West Territories.

2.4 Official Languages

1. The Official Languages of the Federation shall be English and French.
2. All communications to the Members shall be done in either official language, or both, at the member's discretion.
3. Requests for translation from one Official Language to the other may be made by any Member.
4. Furthermore, all publications of the Federation shall be available simultaneously in both Official Languages.
5. In the case of a divergence between the English and French versions of this Constitution, the English version takes precedence.
6. In the case of a divergence between the English and French versions of the rules and regulations or resolutions, the original document takes precedence over the translation as official document of the Federation.

2.5 Invalidation

1. Invalid or illegal dispositions of this Constitution or any other rules or regulations that the Federation should henceforth adopt will not invalidate the whole of this constitution, those rules or those regulations and they shall stay valid as if those invalid or illegal dispositions had never been included.

2.6 Titles

1. Titles inserted in this Constitution and in all other documents of the Federation hereafter passed are included only to facilitate reading and should not affect the interpretation of the Constitution and these documents.

2.7 Interpretation

1. In this Constitution and in all other documents of the Federation hereafter passed, unless the context otherwise requires, words importing the singular number shall include the plural number, and vice versa, and references to persons shall include firms and corporations.

2.8 Bylaws

1. Further to this Constitution and the regulations contained herein, additional policies and best practices can be found in the Bylaws of the Federation, hereafter referred to as the "Bylaws".

2.9 Policy Manual

1. Further to this constitution and the regulations contained herein, additional policies and best practices can be found in the Policy Manual of the Federation, hereafter referred to as the "Policy Manual".

2.10 Document of Stances

1. Official positions taken by the Federation can be found in the Document of Stances as outlined in the Policy Manual.

3 Article 3 - Membership

3.1 Member Societies

3.1.1 Structure

1. Member Societies, also referred to as “Members” and “the Membership”, are Engineering Societies, as defined in the Terms & Definitions of this Constitution.
2. A Member Society pays annual membership fees, as determined in the Policy Manual.
3. A Member Society has the right to one vote at General Meetings of the Federation.

3.1.2 Regular Member

1. A Regular Member of the Federation is a Member Society which has received the support of the Membership as specified in Article 3.2.

3.1.3 Cooperative Regular Member

1. Multiple Engineering Societies may apply to co-represent the undergraduate engineering students at their institution as if eligible to be a Regular Member as defined in Article 3.1.4 where there is no single society fitting the description.
2. A Cooperative Regular Member is identical to a Regular Member in all ways except the voting representative must be confirmed by each cooperative society President.

3.2 Application for Membership

1. To become a Member Society an organization must submit a written application to the Vice-President Finance and Administration, who must immediately inform the Members of such an application.
2. The Members must then make a decision regarding the organization admission, and no later than the General Meeting following the organisation’s submission of the application.

3.3 Observer Status

1. An Observer of the Federation is an Engineering Society which received the support of the Board as specified in the Bylaws.
2. Observer status is valid for one year after an application is approved after which point the Observer must choose to apply to become a Regular Member as per Article 3.1.2, apply for a one-time extension or withdraw membership both as per the Bylaws.

4 Article 4 - General Meetings

4.1 Purpose

1. The regularly scheduled Annual General Meeting and additional General Meetings serve the purpose of allowing Members to examine the activities and the accountability of the Federation.
2. Extraordinary General Meetings will be convened by resolution of the Board or by request of the Members, as outlined in Section 7.6.1 of the Bylaws.

4.2 Annual Meetings

1. The Annual General Meeting shall be held at the Canadian Engineering Leadership Conference.
2. A General Meeting shall be held at the Canadian Engineering Spring Summit.
3. A General Meeting shall be held at the Summit on Development of Engineering Societies.

5 Article 5 - National Executive

5.1 Composition

1. The National Executive shall consist of the:
 - (a) President
 - (b) Vice President Academic
 - (c) Vice President Communications
 - (d) Vice President External
 - (e) Vice President Finance and Administration
 - (f) Vice President Services
2. Powers and duties of the National Executive shall be found in the Policy Manual.

5.2 Election

1. The National Executive is elected at the Annual General Meeting.

5.3 Term of Office

1. The term of office of the National Executive is the same as the Fiscal Year.
2. Concluding their term in office, the Vice-President Finance and Administration will transition to the role of Outgoing Vice-President Finance and Administration, with a term concluding at the end of August.

6 Article 6 - Regional Ambassadors

6.1 Composition

1. The Regional Ambassadors are chosen by their respective region to represent on the Board.
2. There is one Regional Ambassador per region, and they have tasks to accomplish at both the national and regional levels.

6.2 Term

1. The term of office for a Regional Ambassador shall be determined to be the same as the Fiscal Year, unless the relevant regional organization deems otherwise.

7 Article 7 - National Councillors

7.1 Purpose

1. The National Councillors shall be responsible for providing a breadth of experience to the Board, the Federation, and the Members, and advising where desired.
2. Leading up to their term of office, the National Councillors shall be responsible for assisting the organizational transition process.

7.2 Election

1. The two (2) National Councillors are elected at the Annual General Meeting.

7.3 Term

1. The term of office for the National Councillors shall be the same as the Fiscal Year.

8 Article 8 - Directors

8.1 Purpose

1. The Directors shall be the directors formally recognized by the Government of Canada and financial institutions.

8.2 Composition

1. The Directors of the Federation are composed of eight (8) members.
2. The Directors are as follows:
 - (a) The President;
 - (b) The Vice President Finance and Administration;
 - (c) The four (4) Regional Ambassadors;
 - (d) The two (2) National Councillors;

9 Article 9 - Board

9.1 Purpose

1. A Board shall manage the property and business of the Federation.

9.2 Composition

1. The Board of the Federation shall be composed of seven (7) members, hereafter referred to as Voting Board Members:
 - (a) Regional Ambassadors (4)
 - (b) National Councillors (2)
 - (c) President (1)
2. The Board shall be composed of the following non-voting members, hereafter referred to as Non-Voting Board Members:
 - (a) The Board Chair;
 - (b) The Vice President Academic;
 - (c) The Vice President Communications;
 - (d) The Vice President External;
 - (e) The Vice President Finance and Administration;
 - (f) The Vice President Services;
 - (g) Any ratified incoming representative of the Board.

10 Article 10 - Team

10.1 Purpose

1. The CFES Team shall participate in the workings of the Federation.

10.2 Composition

1. The CFES Team shall be composed of:
 - (a) The Board;
 - (b) Activity Managers, as defined in Article 12.2.2;
 - (c) Commissioners, as defined in the Bylaws;

11 Article 11 - Elections

11.1 General Policy

1. The election procedures outlined in the Policy Manual are valid for the election in the Annual General Meeting or by the Board for the National Councillors and the National Executive.
2. The election procedures must include a stipulation that, to be elected, a candidate must receive the absolute majority of the vote, abstentions excluded.
3. In an uncontested election, a candidate must receive support from a number of voters no less than the total number of voters minus the number of voters in the largest regional delegation.

11.2 Eligibility

1. To be eligible, the candidate for a position on the National Executive must be a member of a Member Society at the time of its candidature.
2. There is no specific eligibility condition for the candidate for a National Councillor position.
3. No student shall hold more than one position within the CFES Team at any given time.

12 Article 12 - Activities and Services

12.1 Overview

12.1.1 Canadian Engineering Competition

1. The abbreviation CEC is employed to designate the Canadian Engineering Competition.
2. The French name of CEC shall be “Compétition canadienne d’ingénierie”, abbreviated as CCI.

12.1.2 Canadian Engineering Leadership Conference

1. The abbreviation CELC is employed to designate the Canadian Engineering Leadership Conference.
2. The French name of CELC shall be “Congrès canadien sur le leadership en ingénierie”, abbreviated as CCLI.

12.1.3 Conference on Diversity in Engineering

1. The abbreviation CDE is employed to designate the Conference on Diversity in Engineering.
2. The French name of CDE shall be “Congrès sur la diversité en ingénierie”, abbreviated as CDI.

12.1.4 Summit on Development of Engineering Societies

1. The abbreviation SDES is employed to designate the Summit on Development of Engineering Societies.
2. The French name of SDES shall be “Sommet du développement des associations en ingénierie”, abbreviated as SDAI.

12.1.5 Conference on Sustainability in Engineering

1. The abbreviation CSE is employed to designate the Conference on Sustainability in Engineering.
2. The French name of CSE shall be “Congrès sur le développement durable en ingénierie”, abbreviated as CDDI.

12.2 Organization of Activities and Services

12.2.1 Logos

1. The logo of Activities and Services must incorporate, in part or in full, the logo of the Federation as established in Article 1.5.1.

12.2.2 Activity Agreements

1. The specifications of responsibilities between the Federation and the Activities are outlined in their respective CFES Activity Agreements.

12.2.3 Organizing Members

1. Only Member Societies, as outlined in Article 3.1, and the Board, can organize the activities and services of the Federation.
2. Organizing Members are appointed at any General Meeting.

12.2.4 Activity Managers

1. The Activity Managers are appointed by the Organizing Member.
2. Their term of office spans from the time of appointment until the resolution of any accounts receivable or payable at the conclusion of the activity in question.
3. They have the exclusive responsibility of all that is related to their activity, including, but without limitation to, the financial accountability and their audition by an external auditor, the appointment of an organising committee, the signature of official documents, etc.
4. They answer directly to their Advisory Board, the Organizing Member, and to the Board.

13 Article 13 - Financial and Legal Dispositions

13.1 External Audit

13.1.1 The Federation

1. The Federation must conduct an external audit annually.
2. The auditing entity is to be approved annually at the Annual General Meeting.
3. The cost of this financial review is to be estimated at the time of their approval, the total cost incurred shall be reported at the next General Meeting.

13.1.2 Activities

1. All Activities must undergo an external audit, done through the organization that handled the financial accounts for the Activity.
2. This will be either the Federation or an incorporated body as approved by the Board.
3. The CFES Audit Costs, outlined in Section 8.9 of the Bylaws, will only apply to Organizing Members that use CFES Activity Bank Accounts.

13.2 Audit by Membership

1. At the Summit on Development of Engineering Societies, a Member Society may request to audit the books of the Federation for the current year.

2. The Member Society must report to the next Annual General Meeting.
3. If more than one Member Society makes a request, the General Meeting, or the Board, appoint the Member Society responsible for the audit.

13.3 Reimbursements

13.3.1 Ordinary

1. Board Members will be reimbursed of all costs, charges and expenses they sustain or incur in or about any action, suit or proceedings which is brought, commenced or prosecuted against them, or in respect of any act, deed, matter or thing whatsoever, made, done or permitted by them, in or about the execution of the duties of this office or in respect of any such liability.

13.3.2 Extraordinary

1. The Board may authorize the reimbursement of Board Members of all other costs, charges and expenses which they sustain or incur in or about or in relation to the affairs thereof, except such costs, charges or expenses as are occasioned by their own wilful neglect or default.

13.4 Trust Company

1. The Board shall have power to authorize expenditures on behalf of the Federation from time to time and may delegate by resolution to a Board Member the right to employ and pay salaries to employees.
2. The Board shall have the power to enter into a trust arrangement with a trust company for the purpose of creating a trust fund in which the capital and interest may be made available for the benefit of promoting the interest of the Federation in accordance with such terms as the Board or members may prescribe.

13.5 Donations

1. The Board shall take such steps as they may deem requisite to enable the Federation to acquire, accept, solicit or receive legacies, gifts, grants, settlements, bequests, endowments and donations of any kind whatsoever for the purpose of furthering the objectives of the Federation.

13.6 Power of Attorney

1. The Board may give the power of attorney of the Federation to any registered dealer in securities for the purposes of the transferring of and dealing with any stocks, bonds, and other securities of the Federation.

13.7 Contracts

13.7.1 Signing Requirements

1. Any contracts, documents or any instruments in writing shall be signed by the Vice President Finance and Administration.
2. All contracts so signed shall be binding upon the Federation without any further authorization or formality if the value does not exceed \$1000.
3. Contracts, documents or any instruments in writing exceeding \$1000 requiring the signature of the Federation, shall be signed by the President and the Vice President Finance and Administration.
4. All contracts, documents and instruments in writing so signed shall be binding upon the Federation without any further authorization or formality if the value does not exceed \$10,000.
5. For a contract with a value in excess of \$10,000, a resolution authorizing its signing must be adopted by the Board.
6. Any contracts, documents or any instruments in writing requiring the signature of the Federation for an activity or a service shall be signed by its Activity Manager, or their delegate, also requiring the approval of the Board if in excess of \$10,000.

13.7.2 Special Signing Officer

1. The Board shall have power from time to time by resolution to appoint a member of the CFES Team to sign specific contracts, documents, and instruments in writing.

14 Article 14 - Dissolution of the Federation

1. The Federation will be dissolved upon resolution at a meeting of the Membership where no less than two thirds (2/3) of the Member Societies must agree.
2. All liabilities will be honoured and the remaining assets will be distributed to one or more organizations with goals similar to the Federation.

15 Article 15 - Amendments

15.1 Substantive Amendments

1. The Constitution of the Federation may be repealed or amended by resolution at a General Meeting where no less than two thirds (2/3) active members present must agree.

15.2 Grammatical Amendments

1. Amendments to this constitution that are simply corrective measures to ensure accurate translation and grammatical structure may be passed by the Board with a two thirds (2/3) majority, provided these amendments do not change the concept or spirit of the point being amended.

15.3 Temporary Amendments

1. The Board may prescribe rules and regulations consistent with this Constitution relating to the management and operation of the Federation as they deem expedient.
2. The rules and regulations shall have force and effect only until the next General Meeting when they shall be confirmed.
3. If the rules and regulation fail to be confirmed, they shall at and from that time cease to have any force and effect.
4. Any amendments passed by the Board in this way shall be communicated to all Members within 2 business days.

16 Article 16 - Annulment

1. The present Constitution repeals and annuls all previous Constitutions to date.